

AMEND.

Twenty-Fifth Affirmative Defense

This affirmative defense alleges, “FCA US LLC presently has insufficient knowledge or information on which to form a belief as to whether it may have additional, as yet unstated, defenses available. FCA US LLC reserves the right to assert additional defenses in the event that they would be appropriate.”

The twenty-fifth affirmative defense is not a cognizable affirmative defense. Code of Civil Procedure section 431.30(b) provides that an answer to a complaint shall contain: (1) the general or specific denial of the material allegations of the complaint controverted by the defendant, and (2) a statement of any new matter constituting a defense. A reservation of unidentified future defenses is neither a denial nor a statement of new matter. It does not allege any facts, raise any legal theory, or respond to any allegation in the Complaint. It therefore does not constitute a defense within the meaning of Code of Civil Procedure section 431.30(b). Moreover, Code of Civil Procedure section 472 already provides the mechanism by which a party may seek leave to amend a pleading to add a defense. (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.)

Accordingly, the Demurrer to the twenty-fifth affirmative defense is **SUSTAINED WITHOUT LEAVE TO AMEND**.

For the Foregoing reasons, the Court **SUSTAINS WITH LEAVE TO AMEND** the Demurrer to the second, third, fifth, sixth, seventh, eighth, eleventh, fourteenth, fifteenth, sixteenth, twentieth, twenty-second, twenty-third, and twenty-fourth affirmative defenses; the Court **SUSTAINS WITHOUT LEAVE TO AMEND** the Demurrer to the seventeenth, eighteenth, twenty-first, and twenty-fifth affirmative defenses; the Court **OVERRULES** the Demurrer to the thirteenth and nineteenth affirmative defenses; and the Court finds the Demurrer **MOOT** as to the fourth, ninth, tenth, and twelfth affirmative defenses.

Discovery Law & Motion

21. 9:01 AM CASE NUMBER: C23-01280

CASE NAME: LAURIE MIMS VS. GWEN BERTOLAMI LYSONS

*HEARING ON MOTION FOR DISCOVERY ORDER DEEMING REQUESTS FOR ADMISSION ADMITTED AGAINST GWEN BERTOLAMI LYSONS

FILED BY: MIMS, LAURIE

TENTATIVE RULING:

Summary

This Tentative Ruling applies to Lines 21 and 22. Before the Court are two discovery motions filed by Plaintiffs Laurie Mims and Derek Mims (“Plaintiffs”) against Defendant Gwen Bertolami Lyons (“Defendant”):

1. Motion for Order Deeming Request for Admissions Admitted against Defendant, filed on

March 27, 2026.

2. Motion to Compel Further Responses and Production of Documents to Defendant and request for monetary sanctions, filed on March 30, 2026.

These motions were originally scheduled for hearing on September 30, 2026 at 9:00 a.m. Proofs of service evidence service on Defendant's Counsel, David Ericksen, by e-mail on March 27, 2026 and March 30, 2026. By the Court's order on April 13, 2026, the Court advanced the hearing for these motions for June 3, 2026. The *Ex Parte* order was mailed and e-mailed to counsel of record on April 15, 2026, including Defendant's Counsel, David Ericksen.

Oppositions were due by Defendant on May 20, 2026. No timely oppositions were filed with the Court by Defendant.

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See

<https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

After considering the foregoing, the Court finds good cause to grant both of Plaintiff's Motions.

Ruling

- Plaintiff's Motion for Order Deeming Request for Admissions Admitted against Defendant, filed on March 27, 2026, is **granted**. Sanctions in the amount of \$1,110 is awarded to Plaintiff. The Court will execute the proposed order lodged on March 27, 2026.
- Plaintiff's Motion to Compel Further Responses and Production of Documents to Defendant and request for monetary sanctions in the amount of \$4,960, filed on March 30, 2026 is **granted**. The Court will execute the proposed order submitted to the court by e-mail on June 1, 2026.

22. 9:01 AM CASE NUMBER: C23-01280

CASE NAME: LAURIE MIMS VS. GWEN BERTOLAMI LYSONS

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO GWEN BERTOLAMI LYSONS**

FILED BY: MIMS, LAURIE

TENTATIVE RULING:

See Line 21.